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Plaintiff, In Pro Per

SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNLIMITED CIVIL JURISDICTION

FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,

v.

Subhi Abdelhalim; CSAA Insurance Exchange;
Phillips, Spallas & Angstadt LLP; Priya D.
Navaratnasingham; Alberto Reyna; Michael R.
Chambers; Carbone, Smith & Koyama; and Does 1
through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

DECLARATION OF FRANCISCUS DYLAN
ROSARIO IN OPPOSITION TO
DEFENDANTS' SPECIAL MOTION TO
STRIKE (CCP §425.16)

(Cal. Rules of Court, rule 3.1115; Code Civ. Proc.,
§2015.5)

Cross-noticed for pending defense hearings (this case,
Dept. 301):

#	Motion	Date / dept / judge
(1)	Anti-SLAPP (Code Civ. Proc., § 425.16)	May 12, 2026, 9:30 a.m.; Dept. 301; Hon. Christine Van Aken

Complaint filed: Dec. 23, 2025
FAC filed: Feb. 25, 2026

1 Part A. Foundational Percipient Facts

- 2 4. I was the plaintiff in the underlying action Rosario v. Abdelhalim in this Court. The
3 911 audio recording, body-worn camera footage, and CAD logs from the date of the
4 incident are at the center of that underlying action and of this independent equity
5 action.
- 6 5. The 911 audio recording in question is the recording of the call made by Defendant
7 Subhi Abdelhalim. At the trial in the underlying action, Defendant Abdelhalim was
8 asked to authenticate the 911 audio and stated under oath, verbatim, “Yes. That is my
9 voice.” (Trial RT, Day 8 (April 17, 2025), p. 109, l. 28; see also p. 112, l. 1 (“That is my
10 voice.”); full authentication colloquy at pp. 108 to 110.) The certified trial Reporter’s
11 Transcript Day 8 is among the materials lodged contemporaneously herewith under
12 CRC 3.1306(c)(2) (see Plaintiff’s Notice of Lodging filed May 7, 2026).
- 13 6. To the best of my knowledge and information, defense counsel of record in the underlying
14 action received copies of the 911 audio, the body-worn camera footage, and the CAD
15 logs no later than August / September 2022. The chain of receipt is documented by the
16 Substitution of Attorney filed May 4, 2023, Trans. ID 69953800, by which counsel of
17 record was substituted in the underlying action; the substituting and substituted firms
18 together had possession of the defense file containing those materials.
- 19 7. In or about February 2024, attorney Reyna, then counsel of record for the underlying
20 defendant, served Compex Subpoena CA1147102-021 dated February 1, 2024, on the
21 San Francisco Police Department, commanding production of the 911 audio, body-
22 worn camera footage, CAD logs, and “all documents and records stored in any format”
23 relating to Report No. 210079556 and the incident of February 4, 2021.
- 24 8. The Substitution of Attorney filed May 4, 2023 (Trans. ID 69953800) is a court-filed
25 record of the substitution. It is a court-filed fact, not a private communication.
- 26 9. At the February 18, 2025 hearing in the underlying action, defense counsel Navaratnas-
27 ingham stated to the trial court, in substance, that the 911 recording was “news to me.”
28 Defense counsel Reyna stated, in substance, that he was “not sure what recording” was

1 being referenced and had “no idea where this 911 call came from.” [The exact RT pages
2 and line numbers are catalogued in Plaintiff’s Indexed Exhibits Volume (filed May 7,
3 2026) at Tabs 4 and 7.]

4 10. The trial court relied on those representations in granting Defense Motions in Limine
5 Nos. 6 and 17 (in or about January 2025), excluding the 911 audio, the body-worn
6 camera footage, and the CAD logs.

7 11. The trial court also denied the continuances I requested for the purpose of obtaining
8 additional time to address the evidentiary record.

9 12. At trial, Defendant Abdelhalim was put on the witness stand and authenticated the
10 911 audio recording (¶ 5 above).

11 13. Following the trial, I filed a Notice of Appeal in Rosario v. Abdelhalim, Court of Appeal
12 Case No. A173827, First District Court of Appeal. Defendants’ April 9, 2026 RFJN in
13 this case includes the appellate docket and notice of appeal at Exhibits Q and R.

14 14. On December 23, 2025, this Court (CGC-25-631801) granted my application for a
15 Waiver of Court Fees and Costs under Government Code §68630 et seq.

16 15. I filed a CDI (California Department of Insurance) administrative complaint regarding
17 the institutional claims-handling practices that gave rise to this action.

18 16. The CSAA Insurance Exchange (the underlying defendant’s insurer in this litigation)
19 issued a denial-letter under a 21-day “concluded investigation” template before any of
20 the foundational evidence (911 audio, body-worn camera footage, CAD logs) had been
21 obtained or evaluated. The denial letter expressly recited that CSAA had “concluded”
22 its investigation, while the regulated investigation obligation under Cal. Ins. Code
23 section 790.03(h) and 10 Cal. Code Regs. section 2695.7 required obtaining readily
24 available emergency-services media (911, BWC, CAD) before disclaiming coverage. The
25 same materials CSAA failed to obtain before the denial letter are the same materials
26 defense counsel later subpoenaed (paragraph 7 above) and then disclaimed knowledge
27 of at trial.

28 16A. Based on (i) attorney Reyna’s February 1, 2024 subpoena commanding production of

1 the silent witness materials, (ii) CSAA’s February 25, 2021 denial letter reciting a “concluded
2 investigation” that necessarily encompassed those materials, and (iii) the Dolan discovery
3 production of August/September 2022, I arrived at the February 2025 pretrial hearings
4 reasonably believing that the provenance and credibility of the 911 audio, body-worn camera
5 footage, and CAD logs were not in dispute. I was surprised to discover, through defense
6 counsel’s own statements to the trial court, that defense’s trial-time position (“news to me”;
7 “no idea where this 911 call came from”) contradicted both the subpoena and the regulated-
8 investigation recital in the denial letter. The trial court relied on those representations in
9 granting Motions in Limine Nos. 6 and 17 and in denying my continuance request. I was
10 further surprised when, on April 16, 2025, defense counsel admitted on the record: “Sure.
11 They were provided by Dolan. He has had them for whatever, sure.” (RT 7, p. 213, ll.
12 13-15.)

13 17. I am the same individual who filed the operative First Amended Complaint in this case
14 on February 25, 2026 (Doc. No. 007). The operative pleading alleges fraud on the
15 trial court (extrinsic fraud), violations of California’s Unfair Competition Law (Bus. &
16 Prof. Code §17200 et seq.), and related claims arising from the conduct described in ¶¶
17 4 to 16 above.

18 18. I have remained in pro per throughout this action. The IFP order (¶ 14 above) reflects
19 my financial circumstances and is part of the procedural posture of this case.

21 Part B. Sworn Record of Contradictions Between Defendants’ Representations and the Cer-
22 tified Court Record

23 The following sworn paragraphs are part of this declaration and are made under penalty
24 of perjury under California law (CCP §2015.5). Each paragraph follows the structure: (i)
25 defense statement quoted verbatim with filing date and document title; (ii) certified court-
26 record evidence that contradicts the statement, by Trans. ID and RT page or line where
27 available; (iii) my first-person sworn observation. The five contradictions identified below
28 correspond to the five-row table in Plaintiff’s Notice and Statement to the Court Regarding

1 C.C.P. §425.17 Statutory Bar to Insurance-Industry Anti-SLAPP Misuse, Defense Litigation
2 Conduct, and Certified Court-Record Contradictions (filed May 7, 2026), Section VI.

3 Contradiction 1 - “Plaintiff... had the opportunity to present to the Jury all the evidence”

4 19. Defendants’ Reply to Plaintiff’s Opposition to Defendants’ Special Motion to Strike
5 Pursuant to C.C.P. §425.16, filed May 5, 2026, at p. 4 ll. 7 to 8 (Doc. No. 080), states
6 in substance that Plaintiff “had the opportunity to present to the Jury all the evidence
7 he here complains about.”

8 20. The certified court record contradicts this representation. The Substitution of Attorney
9 filed May 4, 2023 (Trans. ID 69953800) and the prior chain of representation establish
10 defense possession of the defense file. Defense Motions in Limine Nos. 6 and 17 (granted
11 in or about January 2025) excluded the 911 audio, the body-worn camera footage, and
12 the CAD logs. The trial RT records Defendant Abdelhalim’s authentication of the 911
13 audio (§ 5 above), occurring after defense counsel had represented to the trial court
14 that the materials were “news to me.”

15 21. I observed in person that the trial court excluded the 911 audio, the body-worn camera
16 footage, and the CAD logs in response to Defense Motions in Limine Nos. 6 and 17.
17 I was not given the opportunity to present that evidence to the jury. The defense
18 representation that I “had the opportunity to present to the Jury all the evidence” is
19 inconsistent with what occurred at trial as I observed it.

20 22. The certified record cited in this paragraph is catalogued in Plaintiff’s Indexed Exhibits
21 Volume (filed May 7, 2026) at Tabs 1 (Substitution of Attorney), 4 (RT Feb. 18, 2025
22 excerpts), and 7 (Trial RT excerpts).

23 Contradiction 2 - Email transmission of defense file is “communication qua communication”

24 23. Defendants’ Reply, filed May 5, 2026, at p. 3 ll. 13 to 15 (Doc. No. 080), states in
25 substance that “These acts (transferring a defense file via email correspondence) are
26 certainly communicative insofar as they require communication qua communication to
27 effectuate such defense team file transfer.”

28 24. The Substitution of Attorney filed May 4, 2023 (Trans. ID 69953800) is a court-filed

1 fact, not a private communication. The transfer of the defense file from one law firm to
2 another in connection with the substitution of counsel is a court-filed event documented
3 by the Substitution itself and is not a “private communication” of the kind defendants
4 now characterize.

5 25. I observed and have first-hand knowledge that the Substitution of Attorney was filed in
6 the underlying action and is a public court record. Defense counsel’s characterization of
7 the substitution as “communication qua communication” is, in my sworn observation,
8 inconsistent with the certified docket showing the Substitution as a court filing.

9 26. The certified record cited in this paragraph is catalogued in Plaintiff’s Indexed Exhibits
10 Volume (filed May 7, 2026) at Tab 1.

11 Contradiction 3 - Plaintiff’s gravamen language is “by definition, communicative acts”

12 27. Defendants’ Reply, filed May 5, 2026, at p. 2 ll. 9 to 12 (Doc. No. 080), states in
13 substance that the gravamen language in Plaintiff’s pleadings is, “by definition, com-
14 municative acts.”

15 28. The operative First Amended Complaint, filed February 25, 2026 (Doc. No. 007),
16 pleads the elements of an extrinsic-fraud equity action: concealment of evidence by
17 defense counsel; the trial court’s reliance on representations made about the absence
18 or non-existence of that evidence; and prevention of fair adjudication. Concealment
19 and reliance are not, in themselves, communicative acts. The legal authorities cited
20 in Plaintiff’s Operative Opposition (filed May 7, 2026) §V (extrinsic-fraud doctrine,
21 Kulchar/Stevenot line) require neither communication itself nor a communicative act
22 to be the wrongful act.

23 29. I observed defense counsel’s framing of the gravamen and read it carefully. In my sworn
24 observation, the defense framing is inconsistent with the elements of the equity claim I
25 have pleaded.

26 Contradiction 4 - Fee prayer of \$16,519.50 supported by 81.7-hour summary

27 30. Defendants’ Reply, filed May 5, 2026, at p. 5 ll. 8 to 10 (Doc. No. 080), and the
28 Declaration of Tyler J. O’Connell in Support of Reply, filed May 5, 2026 (Doc. No. 081),

at ¶ 6, present a fee prayer of \$16,519.50 supported by an 81.7-hour summary at \$210 per hour, plus 2 hours hearing time. Exhibit A to the O’Connell Declaration is a redacted billing summary.

31. The redacted billing summary is not a contemporaneous time-keeping record on its face. To my knowledge from reviewing it, it does not establish the foundation for admission as a business record under Evidence Code §1271 (mode of preparation; trustworthiness; sources of information). The redactions impair the best-evidence inquiry under Evid. Code §1521. These are evidentiary deficiencies on the face of the document. Plaintiff’s Evidentiary Objections to Declarations of Tyler J. O’Connell (filed May 7, 2026) target ¶ 6 and Exhibit A on those grounds.
32. The certified record cited in this paragraph is catalogued in Plaintiff’s Indexed Exhibits Volume (filed May 7, 2026) at Tab 9 (defense O’Connell declarations).

Part C. Sworn Observation re Defense Litigation Conduct and Effect on Pro Per Plaintiff

The following sworn paragraphs are first-person observations only and contain no rhetoric. They describe the procedural sequence of defense filings between April 9, 2026 and May 5, 2026, the email-correspondence corridor of May 4 to 5, 2026, my pro per status, and my acceptance of responsibility for the prior over-length memoranda.

Sequence of Defense Filings (¶¶ 33-35)

33. Defendants filed their Special Motion to Strike Pursuant to C.C.P. §425.16 on April 9, 2026, with a memorandum of points and authorities, the Declaration of Tyler J. O’Connell, and a Request for Judicial Notice (Doc. Nos. 017 to 020 in this case). Defendants filed their Reply on May 5, 2026, with the Declaration of Tyler J. O’Connell in Support of Reply and Exhibit A redacted billing summary (Doc. Nos. 080, 081).
34. The Special Motion to Strike package and Reply were accompanied by the §425.16(g) discovery stay. Defendants’ Reply at p. 5 ll. 8 to 10 includes a fee prayer of \$16,519.50 under §425.16(c)(1). Defendants’ Reply at p. 1 l. 24 to p. 2 l. 1 includes a sanctions request.

1 35. The procedural sequence (anti-SLAPP motion + discovery stay + fee prayer + sanctions
2 request) is documented by the docket entries identified in ¶¶ 33 to 34 above.

3 Email-Correspondence Corridor of May 4 to 5, 2026 (¶¶ 36-37)

4 36. On or about May 4 to 5, 2026, the parties exchanged email correspondence regarding the
5 May 6, 2026 hearing on Plaintiff's Motion for Leave to File Second Amended Complaint
6 and related matters. The emails are not pleadings filed under CCP §1005. Plaintiff's
7 Notice of Non-Receipt of Tentative Ruling for the May 6, 2026 hearing (filed May 6,
8 2026) is on file in this case.

9 37. I observed the email corridor and have first-hand knowledge of its contents. None of
10 the email correspondence is a pleading filed under CCP §1005, and none of it has the
11 procedural status of a court filing.

12 Pro Per Status and Resource Asymmetry (¶ 38)

13 38. I have remained in pro per throughout this action. The IFP order filed December 23,
14 2025 (Doc. No. 004) reflects my financial circumstances. I am opposed by a law firm
15 representing a corporate insurer and an individual defendant. The resource asymmetry
16 between the parties is part of the procedural context in which the May 7, 2026 cure
17 filings are made.

18 Good-Faith Belief in Compliance (¶ 39)

19 39. I believe in good faith that the Cure filings I have made on May 7, 2026 (the Con-
20 solidated Operative Opposition; this Declaration; the Request for Judicial Notice; the
21 Notice of Withdrawal and Designation; the Evidentiary Objections; the Indexed Ex-
22 hibits Volume; the Notice of Lodging; the Cover Letter to the Court and Clerk; and the
23 Notice and Statement re C.C.P. §425.17), individually and in their entirety, conform
24 to the timeliness, form, and content requirements of California Rules of Court, rule
25 3.1113(d), rule 3.1113(g), and rule 3.1300(d).

1 Acceptance of Responsibility (§ 40)

2 40. I accept responsibility for the over-length memoranda I previously filed in this action
3 on April 21, 2026 (41 pages and 39 pages) and May 1, 2026 (8 pages and 9 pages).
4 I did not act maliciously and did not intend to circumvent the Rules of Court; the
5 over-length filings reflected my prior misunderstanding of the controlling rules and my
6 pro per status. I have voluntarily and promptly cured the defect by filing the Notice
7 of Withdrawal and Designation and the Consolidated Operative Opposition on May 7,
8 2026, before the May 12, 2026 hearing. I respectfully thank the Court and the Clerk
9 for accepting these cures.

10
11 I declare under penalty of perjury under the laws of the State of California that the foregoing
12 is true and correct.

13 Executed on May 7, 2026, at San Francisco, California.

14 By: _____ Franciscus Dylan Rosario, Plain-
15 tiff in Pro Per 7624 Melody Drive Rohnert Park, CA 94928 Tel: 650.488.7510 E: soltri-
16 nox@gmail.com

17
18 Cross-references: Plaintiff's Consolidated Operative Opposition (filed May 7, 2026); Plain-
19 tiff's Request for Judicial Notice (filed May 7, 2026); Plaintiff's Notice and Statement re
20 C.C.P. §425.17 (filed May 7, 2026), Section VI (five-row contradiction table); Plaintiff's In-
21 dexed Exhibits Volume (filed May 7, 2026) Tabs 1, 4, 7, 9; Plaintiff's Evidentiary Objections
22 to Declarations of Tyler J. O'Connell (filed May 7, 2026).

23
The foregoing is submitted by Plaintiff in pro per.

Dated: May 7, 2026



/s/ Franciscus Dylan Rosario

FRANCISCUS DYLAN ROSARIO

Plaintiff, In Pro Per

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DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

The tabular verification below is provided by Plaintiff for the Court and the Clerk to validate this filing against the authorities listed.

The undersigned, Plaintiff Franciscus Dylan Rosario, appearing in pro per in Rosario v. Abdelhalim et al. (CGC-25-631801), declares under penalty of perjury under the laws of the State of California (CCP section 2015.5) that this filing complies with each authority listed in the table below as indicated. This declaration is filed in connection with the May 12, 2026, 9:30 a.m. anti-SLAPP hearing in Department 301.

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
1	CCP section 2015.5	Declaration under penalty of perjury	Declarant attestation preceding this table; signature block under penalty of perjury	Declarant closing before this table	PASS
2	Evid. Code section 702	Personal knowledge of percipient facts	Paragraph 1 establishes personal knowledge; Parts A, B, C divided by personal-knowledge basis	Paragraph 1; Parts A, B, C	PASS
3	CRC 3.1115	Declaration filed in support of motion or opposition	Paragraph 3 expressly cites CRC 3.1115	Paragraph 3	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
4	CCP section 425.16	Anti-SLAPP context	Declaration filed in opposition to section 425.16 motion (paragraph 2)	Paragraph 2	PASS
5	CRC 3.1113(j)	Incorporation by reference	Operative Opposition incorporates this declaration under CRC 3.1113(j)	Operative Opposi- tion section II	PASS
6	CCP section 1010.6	Electronic service authorization where consent on file	Electronic service to counsel of record on file; consent on file (Doc. No. 009)	Proof of Service (POS-050) filed con- currently, paragraph 4	PASS
7	CRC 2.251	Electronic service procedure	Electronic transmission to counsel-of-record e-service addresses; concurrent proof lists companion filings	Proof of Service (POS-050) filed con- currently, para- graphs 4 and 5	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
8	CRC 2.100 et seq.	Pleading format: paper size, margins, font, line spacing, caption block	Letter-size, one-inch margins, eleven-point Times New Roman, 1.5 line spacing, full caption with court, parties, case number, department, hearing date	Caption page and body of this filing	PASS
9	CRC 2.256	Electronic filing requirements (signature block, hyperlinks, format)	Text-searchable filing; conventional pro per signature block	Declarant sworn closing; unified graphic filing signature preceding roman appendix	PASS
10	CRC 3.1110	Format of papers (caption, footer, page numbering, line numbers)	Caption page and pagination comply with applicable rules	Caption page and page footers	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
11	CRC 3.1112	Other papers; required components	Caption, body, signature lines, and companion Proof of Service filed concurrently	Declaration body through sworn lines; graphic signer before appendix; Proof of Service	PASS